REPUBLIC OF KENYA
IN THE HIGH COURT OF KENYA AT NAIROBI
MILIMANI HIGH COURT (COMMERCIAL AND TAX DIVISION)
CIVIL SUIT NO. HCCC/E286 OF 2026
(FAST TRACK)

DR. LYUDMYLA SHCHUKINA **PLAINTIFF / APPLICANT**
trading as **NAIROBI BARIATRIC CENTER LIMITED**

VERSUS

PROF. ALMANTAS MALECKAS **DEFENDANT / RESPONDENT**
trading as **NORDS WEIGHT LOSS CLINIC**

DEFENDANT'S WRITTEN SUBMISSIONS IN SUPPORT OF THE NOTICE OF PRELIMINARY OBJECTION DATED 16TH SEPTEMBER 2026

A. INTRODUCTION & BACKGROUND

1. These Written Submissions are filed on behalf of the Defendant/Respondent, **PROF. ALMANTAS MALECKAS** (trading as Nords Weight Loss Clinic), in support of the Notice of Preliminary Objection dated **16th September 2026**. The Defendant prays that the Plaintiff's Notice of Motion dated 14th August 2026 and the Plaint filed herein be struck out and dismissed with costs.

2. The Plaintiff instituted this suit alleging Copyright Infringement and Passing Off over the phrase *"Nairobi Bariatric Center"* arising from automated digital search advertising. The Defendant contends that the suit is fundamentally flawed, legally incompetent, and an abuse of court process under pure points of law.

B. ISSUES FOR DETERMINATION

3. The Defendant submits the following core issues for this Honourable Court's determination:

1. **Whether the Notice of Preliminary Objection meets the settled threshold under the rule in Mukisa Biscuit.**
2. **Whether a purely descriptive business name phrase can sustain an action for Copyright Infringement under Section 22 of the Copyright Act (Cap 130).**
3. **Whether the Plaintiff's composite trademark application, bearing an express statutory disclaimer, can confer an exclusive monopoly over individual generic words under Section 5 of the Trade Marks Act (Cap 506).**
4. **Whether the suit discloses any reasonable cause of action in law or should be struck out *ab initio*.**

C. LEGAL ARGUMENTS & ANALYSIS

I. Satisfaction of the Threshold in Mukisa Biscuit

4. The landmark principle governing preliminary objections was established by the Court of Appeal for East Africa in ***Mukisa Biscuit Manufacturing Co. Ltd v West End Distributors Ltd [1969] EA 696***, where Law JA held that:

> *"A preliminary objection consists of a point of law which has been pleaded, or which arises by clear implication out of*

5. Sir Charles Newbold P. added in ***Mukisa Biscuit*** that a preliminary objection raises a pure point of law which is argued on the assumption that all facts pleaded by the opposing party are correct. This position was reaffirmed by the Supreme Court of Kenya in ***Independent Electoral and Boundaries Commission v Jane Cheperenger & 2 Others [2015] eKLR*** and the High Court in ***Oraro v Mbaja [2005] eKLR***.

6. Contrary to the Plaintiff's assertions in its submissions dated 10th October 2026, the Defendant's Preliminary Objection does not require factual inquiry or evidentiary trial. Taking the Plaintiff's pleadings at their absolute highest—that the Plaintiff claims copyright in the phrase "Nairobi Bariatric Center" and asserts trademark rights via Application No. MA/T/0001/130022—the suit remains fatally incompetent on pure statutory bars.

II. Incompetence of Copyright Claim over a Descriptive Business Name

7. Ground 1 of the Preliminary Objection raises a pure statutory bar under **Section 22 of the Copyright Act (Chapter 130 of the Laws of Kenya)**. Under Section 22(1), copyright can only subsist in eligible literary, artistic, musical, or audio-visual works that are original and reduced to material form.

8. It is a fundamental principle of intellectual property law that short phrases, titles, descriptive slogans, and business names do not constitute "literary works" and are incapable of copyright protection. In the English authority ***Exxon Corp v Exxon Insurance Consultants International Ltd [1982] Ch 119***, the Court of Appeal firmly established that a single word or short corporate name, regardless of novelty or goodwill, is not a literary work.

9. The phrase "Nairobi Bariatric Center" consists merely of a geographic location ("Nairobi") and two common descriptive words ("Bariatric Center"). To allow an action for copyright infringement over a three-word descriptive title violates Section 22 of Cap 130. As deponed in Paragraph 30-31 of the Defendant's Replying Affidavit, the Plaintiff has failed to produce any Certificate of Registration of Copyright because short descriptive titles are unregistrable as a matter of law.

> **Statutory Principle:** A plain geographic and descriptive trade name is not an original literary or artistic work. Claiming copyright infringement over a short commercial title is legally untenable and constitutes an abuse of court process.

III. Statutory Bar under Section 5 of the Trade Marks Act (Cap 506) & Disclaimer Effect

10. Ground 2 of the Preliminary Objection addresses the Plaintiff's reliance on Trademark Application No. MA/T/0001/130022. **Section 5 of the Trade Marks Act (Cap 506)** explicitly prohibits suits to prevent, or recover damages for, the infringement of an unregistered trade mark.

11. Furthermore, the Plaintiff's own annexure ("LS 2") demonstrates that the mark in question is a **composite mark** comprising both text and a graphical visual device logo, accompanied by an explicit, mandatory statutory disclaimer entered by the Registrar of Trademarks:

> *"Registration of this mark shall give no right to the exclusive use of the device of 'Human being' and the words 'Nairobi', 'Bariatric' and 'Center' each separately and apart from the mark as a whole."*

12. By virtue of this explicit statutory disclaimer, the Plaintiff possesses zero exclusive rights over the individual descriptive words "Nairobi", "Bariatric", or "Center". The Defendant's alleged technical use of the plain text phrase in dynamic Google Search headlines—completely devoid of the Plaintiff's graphical logo or corporate moniker "Limited"—cannot form the basis of a trademark enforcement action.

IV. Unfeasibility of Passing Off via Dynamic Search Engine Advertising

13. The Plaintiff attempts to salvage its defective claim by arguing that passing off survives independently. However, as deponed by Prof. Almantas Maleckas in his Replying Affidavit (Paragraphs 7–10), the appearance of text in search results was a temporary, dynamic outcome of Google's native *"Keyword Insertion"* feature, which matches general search queries with user search intent.

14. Crucially, as established in international persuasive jurisprudence on keyword advertising (such as the CJEU landmark decision in ***Google France SARL v Louis Vuitton Malletier SA [2010] C-236/08*** and UK High Court in ***Interflora Inc v Marks and Spencer plc [2013] EWHC 1291 (Ch)***), the automated triggering of advertisements using descriptive terms does not constitute passing off where the ad clearly displays the distinct identity and URL of the advertiser.

15. At all material times, the Defendant's advertisements prominently featured the brand **"Nords Weight Loss Clinic"** and directed users exclusively to `nords.ke`. No reasonable consumer could be deceived into believing Nords was affiliated with the Plaintiff.

16. Additionally, as shown in Exhibit "PAM-1", the Defendant proactively configured a permanent **Negative Keywords** exclusion list, completely eliminating any display of Nords for searches of the phrase. The subject matter of the interlocutory application is entirely moot.

V. Public Interest and Monopolization of Medical Terms

17. Granting the Plaintiff an exclusive monopoly over generic medical and geographical terminology would violate public policy and restrain fair competition among certified medical practitioners under Article 46 and Article 227 of the Constitution of Kenya.

VI. Striking Out the Suit under D.T. Dobie v Muchina

18. The Plaintiff relies on ***D.T. Dobie & Company (Kenya) Ltd v Muchina [1982] KLR 1*** to argue that striking out is a drastic remedy. However, Madan JA expressly affirmed in that same judgment that where a suit is demonstrably hopeless, bad in law, or barred by statute, the Court has a duty to summarily terminate it to protect the defendant from vexatious litigation and conserve judicial resources.

19. Where a cause of action is founded on a non-existent copyright right over a business title and an unenforceable disclaimed trademark, the pleading is legally hopeless and discloses no reasonable cause of action under Order 2 Rule 15 of the Civil Procedure Rules.

D. CONCLUSION & PRAYERS

20. In light of the mandatory statutory bars under Section 22 of the Copyright Act (Cap 130) and Section 5 of the Trade Marks Act (Cap 506), the Plaintiff's suit and Notice of Motion dated 14th August 2026 are incurably defective and legally untenable.

21. The Defendant/Respondent humbly prays that this Honourable Court be pleased to:

a. **SUSTAIN** the Defendant's Notice of Preliminary Objection dated 16th September 2026 in its entirety.

b. **STRIKE OUT and DISMISS** the Plaintiff's Notice of Motion dated 14th August 2026 and the Plaint filed herein with costs to the Defendant/Respondent.

c. **GRANT** any further relief or orders that this Honourable Court deems fit and just in the circumstances.

DATED at NAIROBI this 16th day of October, 2026.

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